

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
Eduardo Jimenez, :: Index Number:
Date Purchased:
: Date Filed:

Plaintiffs : SUMMONS

-against- :

City of New York, New York City Police Department, :
Detective Luilly Vargas, Shield 3471 of NARCBBX, :
Detective Joseph Higgins, Shield 6101 of NARCBBX, :
Detective James Simpson, Shield 2444 of NARCBBX and :
Undercover Police Officer John Doe :: Plaintiff's residence is:
2319 Morris Avenue
: Bronx, NY 10468

Defendants

-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: May 28, 2022
Bronx, NY

Yours, etc.,

Jason Steinberger

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue, Suite 1H
New York, NY 10018
(646) 256-1007

To: City of New York

New York City Police Department

Detective Luilly Vargas, Shield 3471 of NARCBBX

Detective Joseph Higgins, Shield 6101 of NARCBBX

Detective James Simpson, Shield 2444 of NARCBBX

Undercover Police Officer John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X	:	
Eduardo Jimenez,	:	
	:	
Plaintiffs	:	VERIFIED COMPLAINT
	:	
-against-	:	
	:	
City of New York, New York City Police Department,	:	
Detective Lully Vargas, Shield 3471 of NARCBBX,	:	
Detective Joseph Higgins, Shield 6101 of NARCBBX,	:	
Detective James Simpson, Shield 2444 of NARCBBX and	:	
Undercover Police Officer John Doe	:	
	:	
Defendants	:	
-----X	:	

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Eduardo Jimenez, (hereinafter referred to as "JIMENEZ") resides in Bronx, State of New York.
2. That at all times hereinafter mentioned, Detective Lully Vargas, Shield 3471 of NARCBBX, (hereinafter referred to as "VARGAS") was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, Detective Joseph Higgins, Shield 6101 of NARCBBX, (hereinafter referred to as "HIGGINS") was employed by the New York City Police Department.

4. That at all times hereinafter mentioned, Detective James Simpson, Shield 2444 of NARCB BX, (hereinafter referred to as “SIMPSON”) was employed by the New York City Police Department.
5. That at all times hereinafter mentioned, Undercover Police Officer John Doe, involved in the arrest of Plaintiff (hereinafter referred to as “UC DOE”) were employed by the New York City Police Department.
6. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.
7. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
8. That on or about August 25, 2021 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs’ claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
9. That on or about May 25, 2022 an amended notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs’ claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
10. On or about February 10, 2022, a hearing required by Municipal Law 50-H was held. At said hearing Plaintiff testified and set forth the facts underlying Plaintiff’s claim against the City

of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim.

11. That on or about July 12, 2021 at approximately 9:00 PM in the vicinity of 2241 Creston Avenue, Bronx, NY Plaintiff was on his way to a friend's home when he was stopped, arrested and handcuffed by VARGAS, HIGGINS and SIMPSON.

12. That at no time did Plaintiff possess or exercise custody and control over a controlled substance.

13. That at no time did Plaintiff sell a controlled substance to another person or work together with anyone to sell a controlled substance to another person.

14. That despite the above UC DOE communicated that Plaintiff had participated in a sale of a controlled substance.

15. That VARGAS, HIGGINS and SIMPSON, knowing Plaintiff had not engaged in any illegal activity, arrested Plaintiff anyway.

16. That at no time did Plaintiff engage in any unlawful or illegal behavior.

17. That despite the above, Plaintiff was arrested he was transported to a local Bronx police precinct.

18. That after Plaintiff arrived at the local Bronx police precinct he was placed into a cell with other male prisoners.

19. That after Plaintiff arrived at the local Bronx police precinct he was strip searched and nothing illegal or unlawful was recovered.

20. That after being held for several hours at the local Bronx police precinct, Plaintiff was transported to Bronx County Central Booking located at 215 East 161 Street, Bronx, NY 10451.

21. That on or about July 14, 2021 Plaintiff was arraigned in Bronx County Criminal Court on docket CR-010153-21BX, charging him with Criminal Sale of a Controlled Substance in the Third Degree and related charges.

22. That at the time of his arraignment, Plaintiff was released and ordered to return to court.

23. That on and between July 14, 2021 and December 1, 2021 Plaintiff made numerous court appearances until the matter was dismissed upon application of the Office of the Bronx District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

24. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 23, as if more fully stated herein at length.

25. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

26. That as a result of the actions of Defendants, Plaintiff was seriously injured due to the intentional manner in which Defendants, their agents, servants, employees and/or licensees treated Plaintiff and he was wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

27. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

28. That as a result of the actions by Defendants Plaintiff was traumatized and fears for his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

29. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

30. That as a result of the Defendants' actions, Plaintiff was forced to miss multiple days from work.

31. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

32. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 31, as if more fully stated herein at length.

33. The intentional verbal abuse, false arrest, false imprisonment and maliciously prosecuted by Defendants violated the rights of Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

34. Defendants having no lawful authority to arrest Plaintiff did, nevertheless, unlawfully arrest Plaintiff with actual malice toward her and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS

35. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 34, as if more fully stated herein at length.

36. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for

which Defendants are individually liable. Thus Plaintiff Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

37. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

38. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

39. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

40. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 39, as if more fully stated herein at length.

41. At all times pertinent hereto, VARGAS, HIGGINS, SIMPSON and UC DOE were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

42. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that VARGAS, HIGGINS, SIMPSON and UC DOE committed within the scope of their employment.

AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST DEFENDANTS

43. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 42, as if more fully stated herein at length.

44. The City of New York and New York City Police Department's failure to provide adequate training and supervision to VARGAS, HIGGINS, SIMPSON and UC DOE constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

45. That the City of New York and New York City Police Department were aware that VARGAS was the subject of eight (8) Civilian Complaint Review Board complaints and yet they continued to employ VARGAS.

46. That the City of New York and New York City Police Department were aware that VARGAS was the subject of a lawsuit, Julio Elder v. City of New York et al, index # 307085/2013 in Bronx County Civil Supreme Court and yet they continued to employ VARGAS.

47. That the City of New York and New York City Police Department were aware that VARGAS was the subject of a lawsuit, Morante v. City of New York et al, index # 022860/2015E in Bronx County Civil Supreme Court and yet they continued to employ VARGAS.

48. That the City of New York and New York City Police Department were aware that VARGAS was the subject of a lawsuit, Luis Sanchez v. City of New York et al, index # 302711/2016 in Bronx County Civil Supreme Court and yet they continued to employ VARGAS.

49. That the City of New York and New York City Police Department were aware that VARGAS was the subject of a lawsuit, Derrick Owens v. City of New York et al, index # 027184/2016 in Bronx County Civil Supreme Court and yet they continued to employ VARGAS.

50. That the City of New York and New York City Police Department were aware that VARGAS was the subject of a lawsuit, Christopher Montero v. City of New York et al, index # 300391/2017 in Bronx County Civil Supreme Court and yet they continued to employ VARGAS.

51. That the City of New York and New York City Police Department were aware that VARGAS was the subject of a lawsuit, Jose Rodriguez v. City of New York et al, index # 029601/2017E in Bronx County Civil Supreme Court and yet they continued to employ VARGAS.

52. That the City of New York and New York City Police Department were aware that VARGAS was the subject of a lawsuit, Damien Francis v. City of New York et al, index #

025386/2018E in Bronx County Civil Supreme Court and yet they continued to employ VARGAS.

53. That the City of New York and New York City Police Department were aware that VARGAS was the subject of a lawsuit, Joseph Green v. City of New York et al, index # 025734/2018 in Bronx County Civil Supreme Court and yet they continued to employ VARGAS.

54. That the City of New York and New York City Police Department were aware that VARGAS was the subject of a lawsuit, Shaniqua Moore v. City of New York et al, index # 021218/2018 in Bronx County Civil Supreme Court and yet they continued to employ VARGAS.

55. That the City of New York and New York City Police Department were aware that VARGAS was the subject of a lawsuit, Tyreek Moore v. City of New York et al, index # 021215/2018E in Bronx County Civil Supreme Court and yet they continued to employ VARGAS.

56. That the City of New York and New York City Police Department were aware that VARGAS was the subject of a lawsuit, Christian Fernandez v. City of New York et al, index # 034036/2018E in Bronx County Civil Supreme Court and yet they continued to employ VARGAS.

57. That the City of New York and New York City Police Department were aware that VARGAS was the subject of a lawsuit, Samuel Williams v. City of New York et al, index # 033178/2018E in Bronx County Civil Supreme Court and yet they continued to employ VARGAS.

58. That the City of New York and New York City Police Department were aware that VARGAS was the subject of a lawsuit, Francisco Padilla v. City of New York et al, index # 033400/2018E in Bronx County Civil Supreme Court and yet they continued to employ VARGAS.

59. That the City of New York and New York City Police Department were aware that VARGAS was the subject of a lawsuit, Joael Padilla v. City of New York et al, index # 804217/2021 in Bronx County Civil Supreme Court and yet they continued to employ VARGAS.

60. That the City of New York and New York City Police Department were aware that HIGGINS was the subject of nine (9) Civilian Complaint Review Board Complaints, one of which was substantiated and yet they continued to employ HIGGINS.

61. That the City of New York and New York City Police Department were aware that SIMPSON was the subject of eight (8) Civilian Complaint Review Board Complaints, two of which were substantiated and yet they continued to employ SIMPSON.

62. That the City of New York and New York City Police Department were aware that SIMPSON was the subject of a lawsuit, Joael Padilla v. City of New York et al, index # 804217/2021 in Bronx County Civil Supreme Court and yet they continued to employ SIMPSON.

63. That the City of New York and New York City Police Department were aware that SIMPSON was the subject of a lawsuit, Ethel Harper, as Proposed Adm of The Estate of Jose Muniz v. City of New York et al, index # 306401/2013 in Bronx County Civil Supreme Court and yet they continued to employ SIMPSON.

64. That the City of New York and New York City Police Department were aware that SIMPSON was the subject of a lawsuit, Ashley Martinez v. City of New York et al, index # 14CV00094, in United States District Court, Southern District and yet they continued to employ SIMPSON.

65. That the City of New York and New York City Police Department were aware that SIMPSON was the subject of a lawsuit, Rafael Gonzales v. City of New York et al, index # 13CV07753, in United States District Court, Southern District and yet they continued to employ SIMPSON.

66. That the City of New York and New York City Police Department were aware that SIMPSON was the subject of a lawsuit, London v. City of New York et al, index # 15CV09413, in United States District Court, Southern District and yet they continued to employ SIMPSON.

67. That the City of New York and New York City Police Department were aware that SIMPSON was the subject of a lawsuit, Bautista v. City of New York et al, index # 022465/2015E, in Bronx County Civil Supreme Court and yet they continued to employ SIMPSON.

68. That the City of New York and New York City Police Department were aware that SIMPSON was the subject of a lawsuit, Eric Silverio v. City of New York et al, index # 15CV06617, in United States District Court, Southern District and yet they continued to employ SIMPSON.

69. That the City of New York and New York City Police Department were aware that SIMPSON was the subject of a lawsuit, Bernard Bruno v. City of New York et al, index # 024999/2016E, in Bronx County Civil Supreme Court and yet they continued to employ SIMPSON.

70. That the City of New York and New York City Police Department were aware that SIMPSON was the subject of a lawsuit, Julie Mai v. City of New York et al, index # 036043/2017E, in Bronx County Civil Supreme Court and yet they continued to employ SIMPSON.

71. That the City of New York and New York City Police Department were aware that SIMPSON was the subject of a lawsuit, Clemente Matos v. City of New York et al, index # 024464/2018E, in Bronx County Civil Supreme Court and yet they continued to employ SIMPSON.

72. That the City of New York and New York City Police Department were aware that SIMPSON was the subject of a lawsuit, Jamal Duncan v. City of New York et al, index # 18CV07381, in United States District Court, Southern District and yet they continued to employ SIMPSON.

73. That the City of New York and New York City Police Department were aware that SIMPSON was the subject of a lawsuit, Sean Gadsen v. City of New York et al, index # 034166/2018E, in Bronx County Civil Supreme Court and yet they continued to employ SIMPSON.

74. That the City of New York and New York City Police Department were aware that SIMPSON was the subject of a lawsuit, Osiris Bernal v. City of New York et al, index # 025289/2020E, in Bronx County Civil Supreme Court and yet they continued to employ SIMPSON.

75. That the City of New York and New York City Police Department substantiated allegations that SIMPSON impeded the investigation of escaped prisoner on October 31, 2008 and yet they continued to employ SIMPSON.

76. That the City of New York and New York City Police Department substantiated allegations that SIMPSON violated New York City Police Department rules on December 1, 2008 and yet they continued to employ SIMPSON.

77. That the City of New York and New York City Police Department substantiated allegations that SIMPSON failed to prepare reports and activity logs on March 14, 2009 and yet they continued to employ SIMPSON.

78. That the City of New York and New York City Police Department substantiated allegations that on September 23, 2010 SIMPSON's memobook contained incomplete and improper entries and yet they continued to employ SIMPSON.

79. That the City of New York and New York City Police Department substantiated allegations that SIMPSON failed to appear on an issued traffic summons on November 29, 2011 and yet they continued to employ SIMPSON.

80. That the City of New York and New York City Police Department substantiated allegations that SIMPSON issued discrepancies on a lab reports and incomplete and inaccurate entries on a property invoice on October 22, 2018 and yet they continued to employ SIMPSON.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

81. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 80, as if more fully stated herein at length.

82. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

83. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiff demands judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

Jason Steinberger
Jason A. Steinberger, Esq.
Attorney for Plaintiff
505 Eighth Avenue, Suite 1H
New York, NY 10018
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: May 28, 2022

Jason Steinberger
Jason A. Steinberger